

NON-DISCLOSURE AGREEMENT (NDA)

MUTUAL NON-DISCLOSURE AGREEMENT

This Mutual Non-Disclosure Agreement (the "Agreement") is entered into as of 14 September 2024, by and between Meridian Health Solutions, a New York corporation, and Apex Innovations LLC, a Washington corporation (collectively, the "Parties").

1. **PURPOSE.** The Parties wish to explore a potential strategic business transaction (the "Purpose"). In connection with the Purpose, each Party (the "Disclosing Party") may disclose certain confidential and proprietary information to the other Party (the "Receiving Party").
2. **CONFIDENTIAL INFORMATION.** "Confidential Information" means any non-public information, technical data, or know-how, including, but not limited to, research, product plans, products, services, customers, markets, software, developments, inventions, processes, formulas, technology, designs, drawings, engineering, hardware configuration information, marketing, finances, or other business information disclosed by the Disclosing Party.
3. **NON-USE AND NON-DISCLOSURE.** The Receiving Party agrees not to use any Confidential Information for any purpose except to evaluate and engage in discussions concerning the Purpose. The Receiving Party agrees not to disclose any Confidential Information to third parties or to its employees, except to those employees who are required to have the information in order to evaluate or engage in discussions concerning the Purpose.
4. **MAINTENANCE OF CONFIDENTIALITY.** The Receiving Party shall take reasonable measures to protect the secrecy of and avoid disclosure and unauthorized use of the Confidential Information.
5. **NO OBLIGATION.** Nothing herein shall obligate either Party to proceed with any transaction between them, and each Party reserves the right, in its sole discretion, to terminate the discussions contemplated by this Agreement concerning the Purpose.
6. **TERM.** The obligations of the Receiving Party under this Agreement shall survive until such time as all Confidential Information of the other Party disclosed hereunder becomes publicly known and made generally available through no action or inaction of the Receiving Party.